



Stephen Cooke <stephencooke.c@gmail.com>

They're taking all the assets.

16 messages

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 3:20 AM

My kids are destressed. I have the police coming but don't know if theyll be here in time.

Samantha Miller <samantha@claritylawyers.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Sat, Dec 2, 2023 at 3:27 AM

Poor things, I'm guessing there's nothing you can do without making it more distressing for them at the moment? If the police arrive too late that's fine, they'll still make a report and you just tell them what has happened. You could mention that you have concerns about the kids safety if they are in Heather's care for long periods and give your examples of past incidents. Try very hard to be reasonable and not overly emotional, just set out what has happened. The police reports will be subpoenaed and seen by the Court so you want to appear child focussed and concerned but not distressed. If you appear too distressed it may lend weight to the argument that you are exposing the children to emotions.

I will re-read the letter from Heather's lawyer now and provide any other advice I can think of.

Hang in there. You are being the bigger person here.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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***Our office will be closed from 12noon on Friday, 22 December 2023 until 9am on Wednesday, 3 January 2024.
We wish you a Merry Christmas and a Happy New Year!***



Level 4, T&G Building, [45 Hunter Street, Newcastle NSW](#)

www.claritylawyers.com.au

ABN: 81644034300

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Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 3:36 AM

I'm standing out on the sidewalk and Heather approached me. She said, why are you making this a bit deal? I said I wasn't. But this is unauthorised. We are to attempt mediation before removing assets. I advised her that I have contacted the police. She again states, I'm allowed to leave you, this is what it looks like. I said yes, I understand that. But we needed to attempt mediation first before dividing the assets.

I said all of this with calm and control. Then she began to gad light me and say your acting irrational and erratic. I said I don't think that I am and I just walked away because I felt uncomfortable with the gas lighting

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4 attachments



image001.jpg
11K



image002.png
33K



image002.png
33K



image001.jpg
11K

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 4:28 AM

Men get a bad rap... The police made it clear to me when they arrived that she is allowed to leave. I said, yes of course she is.

On Sat, 2 Dec 2023, 10:27 am Samantha Miller, <samantha@claritylawyers.com.au> wrote:

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4 attachments



image001.jpg
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Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 6:32 AM

Can you call me please. I did accidentally cried in front of the police.

On Sat, 2 Dec 2023, 10:27 am Samantha Miller, <samantha@claritylawyers.com.au> wrote:

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4 attachments



image001.jpg
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image002.png
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Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 6:43 AM

You don't have to call back. Sorry.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sat, Dec 2, 2023 at 1:28 AM

My boys asked me to put up the tree 1st thing this morning so I did... They did a great job decorating it too.

[Quoted text hidden]

5 attachments



1.jpg
727K



2.jpg
885K



3.jpg
937K



4.jpg
145K



5.jpg
390K

Samantha Miller <samantha@claritylawyers.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Sun, Dec 3, 2023 at 1:55 AM

Good Morning Stephen,

I hope you've managed to get over the shock of the weekend. I have to say it will probably be one of the worst weekends of your life.

I'm pleased the children's morning yesterday wasn't all bad (Christmas tree). I've almost completed drafting the Application and will get someone to run through it with you as I'm assuming the children won't be returned this evening. We'll also need to file a few other documents including a financial statement, then we'll need your affidavit. Are you making progress on that?

Just a reminder we need:

A very brief run down about your roles during the relationship, recent concerning events regarding the safety of the children and Heathers financial behaviour followed by a description of what occurred yesterday.

Did you mention your concerns about the safety of the children to the police?

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sun, Dec 3, 2023 at 2:42 AM

I'm making progress on my application. Turns out this kind lady I have been talking to on the internet is either one of a Two JPs (Qual) or JP (Mag Ct) and specializes in domestic violence and typically helping women who are victims of abuse.

I was up late last night with her on discord, she's helped guide me with respect to completing the spousal support expense form and providing a framework of my draft affidavit. So, I'm going through these again this morning and cleaning it up, I hope to have my drafts to you later today.

Regarding evidencing my involvement in the boys medical, David Went, Managing Pharmacist of TerryWhite Chemist knows vaguely what is going on in that my wife is trying to say she has been the primary carer instead of I. He has suggested he complete for me a stat dec. The discord contact provided me with the attached but it looks incomplete. Is this something you can help with? David said to send him an email to david@synergypharmacy.com.au

The Qual went through what has been left at the home and she believes I have the resource still to support the children returning to my care. I have beds, pillows, bed linen and clothes. I have all 3 tvs still because I had padlocks on them. I have a Sofa and coffee table, Fidge, Cutlery, Plates/bowls and toys food, etc.

The officer advised me that I will be allowed to see the kids on Thursday but was unable to disclose where they would be taken to. Is it possible she had an order?

Kind regards,

Stephen Cooke

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3 attachments



image001.jpg
11K



image002.png
33K



commonwealth-statutory-declaration-form.pdf
81K

Samantha Miller <samantha@claritylawyers.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Sun, Dec 3, 2023 at 2:46 AM

Thanks Stephen,

If she had an Order you would have been served with it. This is a case of the police taking her side over yours. It's wrong.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Sunday, December 3, 2023 9:42 AM
To: Samantha Miller <samantha@claritylawyers.com.au>
Subject: Re: They're taking all the assets.

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Stephen Cooke

On Sun, 3 Dec 2023, 8:56 am Samantha Miller, <samantha@claritylawyers.com.au> wrote:

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Samantha Miller | Director and Principal Solicitor

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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Saturday, December 2, 2023 8:29 AM
To: Samantha Miller <samantha@claritylawyers.com.au>
Subject: Re: They're taking all the assets.

My boys asked me to put up the tree 1st thing this morning so I did... They did a great job decorating it too.

On Sat, Dec 2, 2023 at 10:27 AM Samantha Miller <samantha@claritylawyers.com.au> wrote:

Poor things, I'm guessing there's nothing you can do without making it more distressing for them at the moment? If the police arrive too late that's fine, they'll still make a report and you just tell them what has happened. You could mention that you have concerns about the kids safety if they are in Heather's care for long periods and give your examples of past incidents. Try very hard to be reasonable and not overly emotional, just set out what has happened. The police reports will be subpoenaed and seen by the Court so you want to appear child focussed and concerned but not distressed. If you appear too distressed it may lend weight to the argument that you are exposing the children to emotions.

I will re-read the letter from Heather's lawyer now and provide any other advice I can think of.

Hang in there. You are being the bigger person here.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Saturday, December 2, 2023 10:21 AM
To: Samantha Miller <samantha@claritylawyers.com.au>
Subject: They're taking all the assets.

My kids are destressd. I have the police coming but don't know if theyll be here in time.

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Sun, Dec 3, 2023 at 3:03 AM

I've been asked to send you this summary

The other party claims I was emotional but aside from removing most of the available funds from me, dropping an announcement about a divorce etc she has engaged in substantial mental and emotional abuse over the last two weeks. Including:

Coming home disheveled and smelling of mens cologne.

Making nasty comments about her accomplishments and my lack of them.

Commenting on my coping

Leaving pregnancy test kits in plain sight, knowing we aren't having sex.

Telling the boys they are living with her despite no agreement

Not being forthcoming with any of her plans

Constantly changing her mind about when she is moving

Taking my birth certificate and documents personal to me

Taking the children's passports and documents.

Planning play dates as tho everything is normal

Doing chores normally done by me, like groceries and then being angry when she failed to get items.

[Quoted text hidden]



20231203_001547.jpg
3568K

Samantha Miller <samantha@claritylawyers.com.au>

Sun, Dec 3, 2023 at 10:42 PM

To: Stephen Cooke <stephencooke.c@gmail.com>

Thanks Stephen,

I have heaps to go on with drafting an Affidavit and all the documents (I don't have a heap of time though as I'm in court today!). Did you start drafting an affidavit and completing the other forms as far as possible? The more you can do the better. I'd really like to file this today so need as much help as I can get, I'll be getting others in the office to help out too if they have capacity.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Mon, Dec 4, 2023 at 1:14 AM

Hi Samantha,

This is what I have.

The parenting questionnaire needs completion with respect to custody arrangements. It all needs review and help so that the documents flow well, grammar, etc. I have been working many hours on this already. It's been difficult with the trauma I've been subjected to this past weekend as you can imagine.

I've added this to the Notice of abuse form

"Heather Cooke uses love as a weapon. On the morning of Monday November 27 2023, at 9:00am, While assisting our children with putting on their shoes for school, Christian teases Josh "Mom told me last night that she loves me more than you Joshua." Josh replied, "Well mom says she only loves you Christian when you do your homework." I have witnessed Heather Cooke on more than one occasion tell Christian and Joshua, she doesn't love them anymore when they are disobeying her will. I witnessed Heather dismiss Christian and ban him from our bedroom (at a time when he was still accustomed to still sleeping in our bed) stating I do not love you anymore, you sleep on your own tonight. When this has happened in the past, I have stayed with Christian in his bed to provide comfort. I have discussed at length with Heather that you cannot tell the children you loved one more over the other or say things like "I do not love you anymore" just because they disobey your instructions."

Please, can someone have a look and help complete? There may be information that has been made available in one of these documents that should be also made available in another.

Will this do for now?

Kind regards,

Stephen Cooke

[Quoted text hidden]

3 attachments



Questionnaire - Parenting.docx

202K



Dec 3 2023 - Affidavit.docx

17K



Notice of Child Abuse, Family Violence or Risk(1).docx

142K

Samantha Miller <samantha@claritylawyers.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Mon, Dec 4, 2023 at 1:53 AM

Thanks Stephen,

I have to go to court in 20 mins but can I please ask you to take the affidavit document and provide specific examples of the allegations. For example under the heading emotional abuse you say a lot of things about how she makes you feel but I need to understand what she does to make you feel like she is dismissing your contributiosn and belittling your role. What names does she call you? Which interests does she belittle and how? Just a few key examples. Give examples of how she makes you feel you can't have outside interests. How much alcohol is she drinking? How does it affect her behaviour?

Do this for all the other headings as well.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Mon, Dec 4, 2023 at 6:37 AM

Hi Samantha,

Here is an updated draft with multiple examples. I'm at 9 pages and can continue to add to it. It needs some work from your end. Should I keep going? I wanted to get something to you in hopes it enables you to action some items on your end before we run out of time today.

Let me know.

Stephen Cooke
[Quoted text hidden]

 **Dec 4 2023 - Affidavit a.docx**
23K

Stephen Cooke <stephencooke.c@gmail.com>
To: Samantha Miller <samantha@claritylawyers.com.au>

Mon, Dec 4, 2023 at 7:28 AM

Hi again Samantha,

Revision B - changes to the section regarding alleged affair
Added my roles to end of the document.

Also, please find the attached assessments, etc

Kind regards,

Stephen Cooke
[Quoted text hidden]

5 attachments

 **Dec 4 2023 - Affidavit b.docx**
25K

 **Notice of Assessment_2021_Stephen_Cooke.pdf**
709K

 **Notice of Assessment_2022_Stephen_Cooke.pdf**
741K

 **Dr Heather Cooke - 2022 Profit and Loss.pdf**
244K



WALSHS 2021 & 22 Income Tax Summary - Cooke.pdf

334K